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Case Number: 25PSCV03663 Hearing Date: July 29, 2026 Dept: G

Plaintiffs

Leroy Perry, Jr. and Beatrice Alderson and Proposed Plaintiffs Jerry Perry, Sherry Perry, and Jillena Perry's Motion for Leave to File Second Amended Complaint

Respondent:

NO OPPOSITION

TENTATIVE

RULING

Plaintiffs

Leroy Perry, Jr. and Beatrice Alderson and Proposed Plaintiffs Jerry Perry, Sherry Perry, and Jillena Perry's Motion for Leave to File Second Amended Complaint is GRANTED.

Plaintiffs

Leroy Perry, Jr. and Beatrice Alderson and Proposed Plaintiffs Jerry Perry, Sherry Perry, and Jillena Perry are ORDERED to FILE SEPARATELY the proposed SECOND AMENDED COMPLAINT.

BACKGROUND

This

is a wrongful death action. Plaintiff

Leroy Perry, Jr. (Mr. Perry) was an elder with dementia. On October 16, 2024, defendants Skilled San Dimas, LLC (Skilled San Dimas), Bayshire Continuing Care, LLC (Bayshire Continuing Care), Bayshire, LLC (Bayshire), and Golden State Care Holdings, LLC

(Golden State Care), Scott Kirby (Kirby), CareTrust RIET, Inc. (CareTrust), 1740 San Dimas, LLC (1740 San Dimas), and Equity Partners, Inc. (Equity Partners) allegedly admitted Mr. Perry to their skilled nursing facility, Bayshire San Dimas Post-Acute. On October 17, 2024, Mr. Perry allegedly eloped, walked half-a-mile, and fell into the street, suffering a mandibular fracture and traumatic brain injury. On January 16, 2025, Mr. Perry passed away; he is survived by his wife, plaintiff Beatrice Alderson (Ms. Alderson), and children, proposed plaintiffs Jerry Perry, Sherry Perry, and Jillena Perry.

On October 10, 2025, Mr. Perry, by-and-through Ms. Alderson, filed the original Complaint. On November 24, 2025, Mr. Perry and Ms. Alderson filed the operative First Amended Complaint, alleging causes of action for (1) elder neglect, (2) elder neglect seeking enhanced remedies, (3) negligence, (4) fraud, (5) tort per se, (6) intentional infliction of emotional distress, (7) violation of the Patients' Bill of Rights, (8) loss of consortium, and (9) wrongful death.

On July 6, 2026, Mr. Perry, Ms. Alderson, Jerry Perry, Sherry Perry, and Jillena Perry (collectively, the Perry Family) filed this motion to file second amended complaint, which is unopposed.

This case is set for a case management conference, an order to show cause re: dismissal for failure to serve summons and complaint, an order to show cause re: failure to file proof of service, and a hearing on the motion on July 29, 2026.

ANALYSIS

The Perry Family moves to file a proposed Second Amended Complaint. For the following reasons, the motion is GRANTED.

Legal
Standard

"A court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading." (Code

Civ. Proc., § 473, subd. (a)(1).) The court's discretion will usually be exercised liberally to permit amendments of the pleadings. (*Nestle v. City of Santa Monica* (1972) 6 Cal.3d 920, 939.) “A motion to amend a pleading before trial must . . . [i]nclude a copy of the proposed . . . amended pleading, which must be serially numbered to differentiate it; [s]tate what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph, and line number, the deleted allegations are located; and [s]tate what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located.” (Cal. Rules of Court, rule 3.1324(a).) The motion must include a declaration that specifies the amendment's effect, why it is necessary and proper, when the facts supporting the amended allegations were discovered, and why the request was not made earlier. (Cal. Rules of Court, rule 3.1324(b).)

Nevertheless, even where a moving party complies with the requirements of Rule 3.1324 and such proposed amendment is proper, leave to amend is not an absolute right. (See *In re Marriage of Liss* (1992) 10 Cal.App.4th 1426, 1429, noting, “Of course, a trial court also has discretion to deny amendments to pleadings if amendment would not be in furtherance of justice.”) A court may properly deny amendment based on several factors, including the bad faith conduct of the moving party, the belated presentation of the amendment, or the futility of the amendment. (See *Leader v. Health Industries of America, Inc.* (2001) 89 Cal.App.4th 603, 613; see also *Jenkins v. JP Morgan Chase Bank, Nat. Assn.* (2013) 216 Cal.App.4th 497, 535, suggesting that the court deny leave to amend based on futility where the facts are not in dispute and no liability exists under substantive law; see, e.g., *Hirsa v. Super. Ct.* (1981) 118 Cal.App.3d 486, 490, holding that the court may deny leave to amend if the moving party needlessly delayed, which prejudiced the opposing party.) Further, leave to amend must be denied where prejudice is shown to the adverse party. (*Miles v. City of Los Angeles* (2020) 56 Cal.App.5th 728, 739.) Prejudice exists where the amendment would require delaying the trial, resulting in loss of critical evidence, or added costs of preparation, including the completion of additional discovery. (Solit v. Tokai Bank, Ltd. N.Y. Branch (1999) 68 Cal.App.4th 1435, 1448; see also *Miles*, supra, at 739.)

Discussion

As

a preliminary matter, the court must determine whether the motion complies with the requirements of California Rules of Court, Rule 3.1324. As stated above, the California Rules of Court require the moving plaintiff to identify the proposed changes to the pleading, explain why such changes are necessary and proper, and further explain why the changes were not made sooner.

(Cal. Rules of Court, Rule 3.1324, subds. (a)–(b).)

The

Perry Family provides a redlined copy of the proposed Second Amended Complaint. (See Reyda Decl., Exh. G.) The proposed changes add heirs as plaintiffs,

add a cause of action for premises liability, add allegations to newly named defendants, and make minor typographical and grammatical edits. (See Mov. Brief, pp. 2–3.) Between November 24, 2025 and June 11, 2026,

the Perry Family identified heirs and previously unnamed defendants and added them to this action. (See Mov. Brief, pp. 4–5.) The Perry Family

did not seek amendment sooner because it did not learn about the identities of the heirs and unnamed defendants until litigation started and the parties engaged in discovery. (See Mov.

Brief, pp. 4–5.) Thus, the Perry

Family's motion complies with Rule 3.1324, and the court may permit the Perry Family to file the proposed Second Amended Complaint, unless amendment is not in the furtherance of justice.

The

defendants did not file an opposition against amendment or arguing that amendment is not in the furtherance of justice.

(See *Moulton Niguel Water Dist. v. Colombo* (2003) 111 Cal.App.4th

1210, 1215, stating that “[c]ontentions are waived when a party fails to

support them with reasoned argument and citations to authority.”) There is no opposition and no indication of bad faith, belated presentation, futility, or prejudice. Thus, the court finds no basis upon which to deny amendment.

Accordingly,

the motion for leave to file a second amended complaint is GRANTED.

CONCLUSION

For

these reasons, the motion for leave to file second amended complaint is GRANTED.

Plaintiffs

Leroy Perry, Jr. and Beatrice Anderson and proposed plaintiffs Jerry Perry,
Sherry Perry, and Jillena Perry are ORDERED to FILE SEPARATELY
the proposed SECOND AMENDED COMPLAINT.